

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE  
FOR ENGROSSED  
HOUSE BILL NO. 3500

By: Duel of the House

and

Howard of the Senate

COMMITTEE SUBSTITUTE

An Act relating to transfer-on-death deeds; amending 58 O.S. 2021, Section 1252, as amended by Section 1, Chapter 101, O.S.L. 2023 (58 O.S. Supp. 2025, Section 1252), which relates to acceptance by designated grantee beneficiary; modifying procedures for affidavits to accept certain property; modifying time limitation for acceptance of certain property; providing procedure if transfer-on-death deed is not claimed within certain time period after death of record owner; requiring certain notice; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 58 O.S. 2021, Section 1252, as amended by Section 1, Chapter 101, O.S.L. 2023 (58 O.S. Supp. 2025, Section 1252), is amended to read as follows:

Section 1252. A. An interest in real estate may be titled in transfer-on-death form by recording a deed, signed by the record owner of the interest, designating a grantee beneficiary or

1 beneficiaries of the interest. The deed shall transfer ownership of  
2 the interest upon the death of the owner. A transfer-on-death deed  
3 need not be supported by consideration. For purposes of the  
4 Nontestamentary Transfer of Property Act, an "interest in real  
5 estate" means any estate or interest in, over or under land,  
6 including surface, minerals, structures and fixtures.

7 B. The signature, consent or agreement of or notice to a  
8 grantee beneficiary or beneficiaries of a transfer-on-death deed  
9 shall not be required for any purpose during the lifetime of the  
10 record owner.

11 C. A designated grantee beneficiary may accept real estate  
12 pursuant to a transfer-on-death deed only on behalf of himself,  
13 herself, or a legal entity over which he or she has proper  
14 authority. A beneficiary shall not accept such real estate on  
15 behalf of another designated beneficiary.

16 D. Each designated grantee beneficiary wishing to accept real  
17 estate pursuant to a transfer-on-death deed shall execute an  
18 affidavit affirming:

- 19 1. Verification of the record owner's death;
- 20 2. Whether the record owner and the designated beneficiary were  
21 married at the time of the record owner's death; and
- 22 3. A legal description of the real estate.

23 E. The Each designated grantee beneficiary shall attach sign  
24 and record an affidavit and a copy of the record owner's death

1 ~~certificate to the beneficiary affidavit. For a record owner's~~  
2 ~~death occurring on or after November 1, 2011, the beneficiary shall~~  
3 ~~record the affidavit and related documents~~ with the office of the  
4 county clerk where the real estate is located ~~within nine (9) months~~  
5 ~~of the grantor's death, otherwise the interest in the property~~  
6 ~~reverts to the deceased grantor's estate; provided, however, for a~~  
7 ~~record owner's death occurring before November 1, 2011, such~~  
8 ~~recording of the affidavit and related documents by the beneficiary~~  
9 ~~shall not be subject to the nine-month time limitation~~ acknowledging  
10 the beneficiary's acceptance of the interest in the real estate. A  
11 beneficiary may only accept real estate on his or her own behalf;  
12 provided, however, multiple beneficiaries may sign the same  
13 affidavit. The affidavit may be filed at any time after the death  
14 of the record owner provided that the presentment date for creditors  
15 has not passed for the estate of the record owner as provided in  
16 subsection F of this section. Notwithstanding the provisions of  
17 Section 26 of Title 16 of the Oklahoma Statutes, an affidavit  
18 properly sworn to before a notary shall be received for record and  
19 recorded by the county clerk without having been acknowledged and,  
20 when recorded, shall be effective as if it had been acknowledged.  
21 F. If no designated grantee beneficiary claims the real estate  
22 within one (1) year of the death of the record owner, such property  
23 may be included in an estate of the record owner opened pursuant to  
24 Title 58 of the Oklahoma Statutes. Notice shall be provided to all

1 named beneficiaries of the deed in the manner required by the  
2 probate procedure for a known creditor of the estate. Any unclaimed  
3 interest remaining at the expiration of the presentment date for  
4 creditor claims in the probate of the estate of the record owner  
5 shall be forfeited and barred from being claimed by the named  
6 beneficiary and the unclaimed interest shall become property of the  
7 estate. If an estate of the record owner is opened for probate  
8 prior to the one-year anniversary of the date of death of the record  
9 owner, the personal representative shall be required to provide a  
10 new notice to each unclaimed beneficiary at his or her last-known  
11 address, or if an unclaimed beneficiary's address is unknown or the  
12 unclaimed beneficiary has died after the record owner but prior to  
13 acceptance, then by publication in one issue of a newspaper in the  
14 county in which the property is located. The unclaimed interest  
15 shall not be forfeited to the estate until thirty (30) days after  
16 the mailing of notice or the publication of notice in the newspaper.  
17 Upon the expiration of such period, the unclaimed interest shall  
18 become property of the estate.

19 G. A beneficiary affidavit recorded pursuant to this section  
20 before November 1, 2023, in which one or more, but not all, named  
21 beneficiaries of a transfer-on-death deed explicitly accepts the  
22 interests being conveyed by the deed on behalf of all or some of the  
23 beneficiaries named therein shall be effective to accept such  
24

1 interests if executed by at least one of the named beneficiaries  
2 accepting such interests.

3 SECTION 2. This act shall become effective November 1, 2026.

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